

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: December 20, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

FIRST AMENDED SCHEDULING ORDER

On December 20, 2024, Complainant Peloton Interactive, Inc., filed a Motion for Extension of the Scheduling Order (“Motion to Extend”), seeking to extend discovery due to the large volume of documents exchanged between the parties and the need for adequate time to review them, as well as the necessity to give adequate time for noticing depositions. Complainant avers that Respondent Flexport International LLC consents to the extension of time and will not file an opposition to the motion.

Complainant seeks to extend all existing deadlines by two and a half months, has added significant additional time for expert discovery, reports, responses to reports, and depositions, and has not included a date for the close of all discovery. While some extension of time is reasonable, two and a half months is not warranted by the volume of records produced or the number of depositions anticipated by the parties. Accordingly, the parties are **ORDERED** to follow the amended schedule set forth below, which includes the events Complainant added:

February 28, 2025	Complete Fact Depositions
March 5, 2025	Expert Discovery Begins
March 5, 2025	Joint Status Report Due
March 21, 2025	Expert Reports Due
April 4, 2025	Responses to Expert Reports Due
April 18, 2025	Expert Depositions Completed
April 18, 2025	Completion of all Discovery
May 16, 2025	Complainant’s initial brief, proposed findings of fact, and appendix

June 13, 2025

Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix

June 27, 2025

Complainant's reply brief and responses to proposed findings of fact

Linda S Harris Crovella

Linda S. Harris Crovella

Administrative Law Judge